Again, in the *I.R. Coelho* case[19] (2007), the Supreme Court reaffirmed the above view. In this case, the court ruled that there could not be any blanket immunity from judicial review of the laws included in the Ninth Schedule. It held that judicial review is a 'basic feature' of the constitution and it could not be taken away putting a law under the Ninth Schedule. It said that the laws placed under the Ninth Schedule after 24 April, 1973, are open to challenge in court if they violated fundamental rights guaranteed under Articles 14, 15, 19 and 21 or the basic structure of the constitution.

Originally (in 1951), the Ninth Schedule contained only 13 acts and regulations but at present, their number is 282.[20] Of these, the acts and regulations of the state legislature deal with land reforms and abolition of the zamindari system and that of the Parliament deal with other matters.

3. Saving of Laws Giving Effect to Certain Directive Principles

Article 31C, inserted by the 25th Amendment Act of 1971, contains the following two provisions:

1. No law that seeks to implement the socialistic directive principles specified in Article 39(b)[21] or (c)[22] shall be void on the ground of contravention of the fundamental rights conferred by Article 14 (equality before law and equal protection of laws) or Article 19 (protection of six rights in respect of speech, assembly, movement, etc.)

2. No law containing a declaration that it is for giving effect to such policy shall be questioned in any court on the ground that it does not give effect to such a policy.

In the *Kesavananda Bharati* case[23] (1973), the Supreme Court declared the above (b) provision as unconstitutional and invalid on the ground that judicial review is a basic feature of the Constitution and hence, cannot be taken away. However, the above (a) provision was held to be constitutional and valid.

The 42nd Amendment Act (1976) extended the scope of the above (a) provision by including within its protection any law to implement any of the directive principles specified in Part IV of the Constitution and not merely in Article 39 (b) or (c). However, this extention was declared as unconstitutional and invalid by the Supreme Court in the *Minerva Mills* case[24] (1980).

Article 31C does not immunise a state law from judicial review unless it has been reserved for the President's consideration and has received his/her assent.

CRITICISM OF FUNDAMENTAL RIGHTS

The Fundamental Rights enshrined in Part III of the Constitution have met with a wide and varied criticism. The arguments of the critics are as follows:

1. Excessive Limitations

They are subjected to innumerable exceptions, restrictions, qualifications and explanations. Hence, the critics remarked that the Constitution grants Fundamental Rights with one hand and takes them away with the other. Jaspat Roy Kapoor went to the extent of saying that the chapter dealing with the fundamental rights should be renamed as 'Limitaions on Fundamental Rights' or 'fundamental rights and Limitations Thereon'.

2. No Social and Economic Rights